

Najir Ahmad v. Managing Director, Paschimanchal Vidyut Vitran Nigam Limited

Allahabad High Court · Division Bench · 29 August 2025 · WRIT - C No. 20749 of 2025 · **Status quo on recovery till next date; listed.**

HEADNOTE

Interim order. Writ challenging a post-disconnection demand of Rs. 1,08,786 after the consumer forum declined jurisdiction. Licensee invoked clause 6.5 of the U.P. Electricity Supply Code, 2005. Status quo on recovery; counter directed; merits not decided.

FACTUAL SUMMARY

The petitioner challenged a notice dated 8 October 2022 issued by Paschimanchal Vidyut Vitran Nigam Limited demanding Rs. 1,08,786. He had approached the consumer forum, which held it had no jurisdiction. He contended that Rs. 3,000 was paid on 28 October 2017 when a permanent disconnection was effected, so no further claim could arise. The licensee submitted that a dispute on bills is to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim status quo on recovery of disputed demand

HOLDING

The Court did not decide the validity of the 8 October 2022 demand or whether clause 6.5 of the Supply Code is the exclusive remedy. It directed the supply company to file a counter-affidavit within three weeks, listed the writ, and ordered status quo on recovery till the next date of hearing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 8 OCTOBER 2022 FOR RS. 1,08,786 AFTER ALLEGED PERMANENT DISCONNECTION

¶ 1-4

NOT DECIDED — WHETHER A BILL DISPUTE MUST BE RAISED UNDER CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Invoked by the licensee; not decided ¶ 2